

incurred that were reasonably necessary to achieve Plaintiff's litigation objectives. As Plaintiff clarifies in Reply, the 26.8 hours presented on this Motion *exclude* administrative tasks performed by support staff. (Reply Valitskaya Decl., ¶ 6.) Thus, the Court finds that 26.8 hours is a reasonable amount of time spent in this action.

Based on the foregoing, the lodestar amount through filing of the Motion is \$11,485.

Plaintiff's showing of additional time (5 hours) spent reviewing the Opposition and drafting the Reply is sufficient and reasonable. (Reply Valitskaya Decl., ¶ 8.) However, the Court does not award fees for anticipated time. (*Ibid.*) Thus, the sum of \$2,750 (= 5 hrs x \$550) shall be added to the above lodestar amount.

Based on the foregoing, the reasonable amount of Plaintiff's attorneys' fees is **\$14,232** (= \$11,482 through filing of motion + \$2,750 reply).

3. Adjustment to Lodestar

The lodestar figure can be adjusted up or down based on several factors including: (1) the risks presented by the litigation; (2) the novelty and difficulty of the legal and factual issues involved; (3) the results obtained on behalf of the plaintiff; and (4) the skill exhibited by counsel. (*In re Consumer Privacy Cases* (2009) 175 Cal.App.4th 545, 556.)

Plaintiff requests a 20% multiplier on Plaintiff's attorney's fees with little to no application of the law to the facts or circumstances at hand. In Opposition, Defendant requests the Court deny the multiplier request.

Whether to apply an adjustment to the lodestar is entirely within the Court's discretion. (*PLCM Group, Inc.*, *supra*, 22 Cal.4th at 1095.) The Court does not find that the relevant factors weigh in favor of any adjustment in this routine lemon law case. Thus, Plaintiff's request for a multiplier to the lodestar amount is DENIED.

D. CONCLUSION

Plaintiff is awarded fees in the amount of **\$14,232** and costs in the amount of **\$1,061.50**.

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Jessica Fernandez v. SRGA Resort LP et al

25CV002248

DEFENDANT SRGA RESORT, LP'S MOTION FOR LEAVE TO WITHDRAW ITS ANSWER

TENTATIVE RULING: The motion is GRANTED. The Court sets the matter for Case Management Conference on October 23, 2026, at 9:30 in Dept. B. The Case Management Conference currently set for November 6, 2026, at 8:30 in Dept. A is vacated. The Clerk is directed to send notice to the parties.

Defendant SRGA Resort (SRGA) moves, pursuant to California Code of Civil Procedure section 585, subdivision (b), for an order lifting the stay and granting Defendant SRGA leave to withdraw its Answer to Plaintiff's Complaint, so that Plaintiff Jessica Fernandez may proceed to request entry of default against Defendant SRGA.

SRGA cites caselaw sanctioning a trial court's decision to permit a defendant to withdraw its operative answer. (See, *e.g.*, *Brown v. Brown* (1932) 125 Cal.App. 429, 438 [held: where no fraudulent purpose is established, appellant "is in no position to complain of the court's action in permitting his co-defendant's answer to be withdrawn"]; see also *Israel v. Super. Ct. of San Diego Co.* (1919) 43 Cal.App. 711, 713 ["That the court in permitting the defendant Bryan to withdraw his answer was acting within its jurisdiction is not and, in our opinion, cannot be, questioned in this proceeding"].)

There is no opposition to the Motion in the Court's file.

Based on the foregoing, the Motion is GRANTED.

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Tifnique Garrison v. Store Storage

26CV000996

[1] MOTION TO CONTINUE PENDING RETENTION OF LEGAL COUNSEL

TENTATIVE RULING: The motion appears MOOT.

By way of the instant Motion, Plaintiff requests time to hire counsel and requests that the August 19, 2026 hearing on Plaintiff's Application for Writ of Possession be moved to October 8, 2026. The instant Motion was filed August 18 after the Tentative Ruling for the August 19 hearing was already posted. Nevertheless, the August 19 hearing has passed, rendering the present Motion moot. Moreover, the August 19 Minute Order continued the Application for Writ hearing anyway, albeit for Plaintiff's failure to file a Proof of Service.

To the extent the present Motion is not moot, there is no Proof of Service of the Motion on Defendant. As a result, the Court is unable to ascertain whether Defendant received sufficient notice and the hearing would need to be continued. (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 ["The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question."].)

[2] PLAINTIFF'S APPLICATION FOR WRIT OF POSSESSION AND TEMPORARY RESTRAINING ORDER

TENTATIVE RULING: The matter is CONTINUED one final time to October 23, 2026, at 8:30 a.m. in Dept. A to allow Plaintiff additional time to provide sufficient notice of the hearing and application and to file Proof of Service (POS).

By Minute Order dated August 19, 2026, the matter was continued for lack of a POS, and Plaintiff was directed to (1) prepare an Amended Notice of Hearing which contains the continued